

## IN THE EMPLOYMENT TRIBUNAL

**Claimant:** [The Claimant]

**Respondent:** [The Respondent]

### GROUND OFS OF CLAIM

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#### 1. Introduction

1.1 The Claimant, a model validation specialist who is on the autism spectrum, brings claims for direct disability discrimination (s.13 Equality Act 2010), discrimination arising from disability (s.15 EqA), victimisation (s.27 EqA), and failure to make reasonable adjustments (ss.20-21 EqA) arising from his application for the role of [the Role] in [Month]–[Month] [Year]. These claims are brought under section 39 of the Equality Act 2010, which applies the foregoing prohibitions to the recruitment context.

1.2 The central contention is that the Respondent used its own Disability Confident Scheme ("DCS") to identify the Claimant's disability, then subjected him to a predetermined, brief interview with no technical content, and rejected him on grounds that were never listed in its own job advert. The interview also failed to implement any of the adjustments the Respondent had acknowledged in writing several weeks earlier.

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#### 2. The Role and the Advertised Criteria

2.1 The Respondent advertised the Role at a salary of approximately [Salary Range]. The essential requirements were:

- Previous model validation or model development experience,
- Advanced use of [Software A], [Software B] or similar software,
- Up-to-date knowledge of [Regulatory Body A] and [Regulatory Body B] requirements (including [Specific Regulation]),
- A degree in a quantitative field.

2.2 The Claimant met all the essential criteria. He holds an MSc in Econometrics from a leading European university, has substantial model validation experience including a role as Model Validation Manager at a UK retail bank, and has used [Software A], Python, and R for statistical modelling and independent validation work. His experience spans market risk, stress testing, treasury risk, and valuation control — all areas directly relevant to the Role as the Respondent described it.

2.3 Neither [Specific Experience X] nor [Specific Modelling Y] was listed as essential or desirable. The advert described the role as covering a breadth of models including market-based models, liquidity models, and stress testing models — all areas within the Claimant's expertise.

2.4 By inviting the Claimant to interview, the Respondent acknowledged that he met the advertised minimum criteria. The subsequent rejection for lacking [Specific Experience X] is therefore inconsistent with the Respondent's own advert and its own prior assessment of suitability.

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### **3. Chronology of Events**

#### **3.1 Application — [Date A]**

The Claimant submitted his application for the Role on [Date A]. The Respondent acknowledged receipt the same day via automated email.

#### **3.2 Adjustment disclosure — [Date B]**

On [Date B], the Claimant emailed Talent Acquisition Partner [Recruiter A] setting out the adjustments he required:

- "1. Clear objective definition: I perform best when the intended focus or success criteria of a question are explicit.
- 2. Sequential handling of multilayered questions."

[Recruiter A] acknowledged these adjustments in writing the same day. The Respondent therefore had several weeks' notice before the interview.

#### **3.3 Protected act disclosure — [Date C]**

During a telephone screening call which lasted approximately 14 minutes, [Recruiter A] asked the Claimant why he had left his previous employer. The Claimant answered honestly that he had been dismissed by [Former Employer] and that this dismissal was the subject of a live Employment Tribunal claim for disability discrimination. This disclosure constitutes a protected act under section 27(2)(b) of the Equality Act 2010.

#### **3.4 The role is put on hold — [Date D]**

Just two days after the protected act, [Recruiter A] emailed the Claimant to say the Role had been "placed on hold for the foreseeable future". The Claimant's application was suspended.

#### **3.5 Parallel application for second role — [Date E]**

On [Date E], the Claimant applied for a second role at the Respondent: [the Second Role]. The Respondent acknowledged receipt the same day via automated email.

#### **3.6 DCS disclosure and written commitment — [Date F] to [Date G]**

The Claimant disclosed his autism in writing on [Date F] and requested to apply under the DCS. On [Date H] he clarified that DCS meant "the Disability Confident Scheme". On [Date G] [Recruiter A] replied confirming that the Claimant's disclosure had been noted,

would be taken into consideration for both roles, and that the applications would be progressed in line with DCS guidelines.

Thus the Respondent, now fully aware of the Claimant's disability, his DCS request, his specific adjustment needs, and his live Tribunal claim, committed in writing to apply DCS guidelines and to reassess against the advertised minimum criteria. This commitment applied to both roles.

### **3.7 The interview — [Date I]**

The Claimant attended a video interview with [Hiring Manager] (line manager for model validation). The interview lasted approximately [X] minutes. [Hiring Manager] asked only:

- What were the Claimant's motivations for applying?
- Does the role align with his future goals?
- Which programming language is he proficient in?
- Had he worked on specific models such as [Specific Model A] or [Specific Model B]?
- Did he have the right to work in the UK?

No technical questions were asked at all. None of the pre-disclosed adjustments were implemented. When the Claimant answered the question about specific model experience by stating his experience was mostly in market risk but that validation skills are transferable, [Hiring Manager] responded "okay, good" and moved immediately to the administrative right-to-work question.

Significantly, [Hiring Manager] himself confirmed during the interview that the team's model catalogue includes more than just [Specific Model Type] models, expressly referencing market-based models, liquidity models, and stress testing models. This breadth description matches the Claimant's expertise and entirely undercuts the narrow ground later used to reject him.

### **3.8 The morning of [Date J] — three contemporaneous actions**

The following events all occurred on the morning of [Date J] within a short period. All timestamps are UK time (BST).

#### **3.8.1 Verbal rejection — approximately [Time A]**

At approximately [Time A], [Recruiter A] telephoned the Claimant and verbally communicated the rejection for the Role.

#### **3.8.2 Request to withhold disability information from the second hiring manager — [Time B]**

At [Time B], approximately 30 minutes after the verbal rejection, the Claimant emailed [Recruiter B] (the recruiter handling the Second Role) requesting to withdraw his DCS application and asking that his disability and adjustments be kept confidential from the

hiring manager. The Claimant made this request because he had inferred from his experience of the first recruitment process that his disability disclosure and DCS application had harmed rather than helped his candidacy. This email constitutes a contemporaneous documentary record, created within minutes of the rejection, in which the Claimant identified the discriminatory effect of the Respondent's DCS process in real time.

[Recruiter B] replied later that day confirming that the Claimant's application would not be under the DCS as requested, and that any conversations regarding DCS or adjustments would remain confidential and not be shared with the hiring manager.

### **3.8.3 Written challenge to the rejection — [Time C]**

At [Time C], the Claimant emailed both [Recruiter A] and [Hiring Manager] challenging the rejection, stating that model validation is a transferable discipline and that specific model experience was not necessary or a listed requirement. The Respondent did not provide any substantive rebuttal to this challenge.

### **3.9 The written rejection — [Date K]**

On [Date L], the Claimant emailed [Recruiter A] requesting that the verbally communicated rejection reason be confirmed in writing. On [Date K], [Recruiter A] replied confirming that the Claimant had articulated himself clearly and presented a friendly demeanour, but had evidenced a lack of experience with [Specific Model Type] models. The email concluded with a statement that the Respondent would welcome applications from the Claimant in the future.

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## **4. Claim 1: Direct Disability Discrimination (s.13 EqA)**

4.1 The Respondent knew the Claimant was disabled. It committed in writing to apply DCS guidelines.

4.2 The treatment the Claimant received was less favourable than a non-disabled comparator would have received in the same circumstances:

- A brief interview for a senior technical role, containing no technical questions and no opportunity to demonstrate competence,
- A complete failure to implement the adjustments acknowledged in writing several weeks earlier,
- Rejection on a criterion that was not in the job advert, was not explored in the interview (despite the interviewer himself confirming the role's breadth), and was dismissed with "okay, good" when briefly raised.

4.3 The sequence of events (disability disclosure → DCS commitment → brief non-technical interview → rejection on unadvertised grounds, contradicted by the

interviewer's own description of the role) points strongly to a predetermined outcome. The DCS process, intended to protect disabled candidates, instead functioned to flag the Claimant's disability before any substantive assessment occurred.

4.4 The Claimant invites the Tribunal to find that the burden shifts to the Respondent to provide a cogent, non-discriminatory explanation that accounts for all these inconsistencies simultaneously.

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## **5. Claim 2: Discrimination Arising from Disability (s.15 EqA)**

5.1 The Claimant's adjustment request of [Date B] and his DCS application of [Date F] constitute things arising in consequence of his disability. The Claimant requires clear objectives, technical substance, and sequential questioning because of his autism. He applied under the DCS because he is a disabled person. Both actions arose from his disability.

5.2 The Respondent treated the Claimant unfavourably because of these things arising from his disability. The unfavourable treatment comprised a brief interview with no technical content, a failure to implement acknowledged adjustments, and rejection on a criterion not in the advert, not explored in the interview, and contradicted by the interviewer's own description of the role.

5.3 The Respondent had written knowledge of the Claimant's adjustment needs from [Date B], and knew the Claimant was disabled from [Date F] when the Claimant disclosed his autism in writing. That knowledge was confirmed on [Date G].

5.4 The Respondent cannot show that this treatment was a proportionate means of achieving a legitimate aim. The adjustments requested were straightforward and cost nothing to implement. A genuine technical interview with those adjustments would have been a less discriminatory means of assessing the Claimant's suitability. The Respondent's failure to take that course, and its resort instead to a perfunctory, brief conversation, cannot be justified.

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## **6. Claim 3: Victimisation (s.27 EqA)**

6.1 The disclosure of a live disability discrimination claim against a former employer is a protected act. The Respondent itself created the occasion for this disclosure by asking directly why the Claimant had left his previous role.

6.2 Two days after that disclosure, the Role was placed on hold. When it was later reopened, the Claimant was subjected to a brief, non-technical interview and rejected on grounds not contained in the job advert. This detriment followed immediately after

the protected act and is consistent with a hiring process influenced by knowledge that the Claimant had previously enforced his legal rights.

6.3 The protected act marked the Claimant as someone who had brought proceedings under the Equality Act. The inference is that this knowledge (whether held solely by [Recruiter A] or communicated to [Hiring Manager]) contributed to the decision to reject him.

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## **7. Claim 4: Failure to Make Reasonable Adjustments (ss.20-21 EqA)**

7.1 The Respondent's standard interview format placed the Claimant at a substantial disadvantage. His disability means he requires explicit objectives, technical substance, and sequential questioning to perform effectively.

7.2 The Respondent had written knowledge of these required adjustments from [Date B] and acknowledged them the same day.

7.3 The Respondent failed to implement any of those adjustments. The interview contained no technical questions, no clear objectives, and no structured sequence. The duty to make reasonable adjustments was therefore breached.

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## **8. The Cumulative Picture**

8.1 The following facts are all supported by the disclosed documents:

- The Claimant met all the essential criteria advertised for the Role and had directly relevant experience as a Model Validation Manager at a UK retail bank.
- The Respondent knew of the Claimant's disability, adjustments, DCS request, and protected act well before the interview.
- The role was placed on hold two days after the protected act.
- The Respondent promised in writing to apply DCS guidelines.
- The interview was brief, with no technical questions and no adjustments implemented.
- The interviewer himself confirmed the role covers market risk, liquidity, and stress testing models — not only the narrow model type cited in the rejection.
- The only question touching the eventual rejection reason was met with "okay, good" and immediately dropped.
- The rejection reason does not appear in the job advert and directly conflicts with the interviewer's own description of the role.
- The Claimant's contemporaneous challenge went unanswered.
- Within approximately 30 minutes of the verbal rejection, the Claimant requested to withdraw from the DCS for the second role, recognising that the scheme had harmed rather than helped him.

8.2 The only coherent explanation is that the outcome was predetermined, motivated by the Claimant's disability, something arising from his disability, his protected act, or a combination of these. The stated reason was a pretext.

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## **9. Remedy**

The Claimant seeks:

- A declaration that the Respondent contravened the Equality Act 2010,
- Compensation for injury to feelings,
- Compensation for financial loss,
- Aggravated damages,
- Interest,
- Such further or other relief as the Tribunal thinks just.